

26SMCP00067 26SMCP00067

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-16

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Case Number: 26SMCP00067 Hearing Date: July 16, 2026 Dept: P

Tentative

Ruling

Gery

Gayk Charliyan v. State Farm Mutual Automobile Insurance Co., Case No.
26SMCP00067

Petitioner's

Motion to Compel Deposition

Hearing

Date: July 16, 2026

Background

This is a petition for a case number over an uninsured or underinsured motorist claim pursuant to Code Ins. § 11580.02 and Code Civ. Proc. § 1281, et seq. On January 30, 2026, Petitioner Gery Gayk Charliyan filed this petition against Respondent State Farm Mutual Automobile Insurance Co. alleging that Petitioner purchased an uninsured/underinsured motorist policy from Respondent, that Respondent placed Petitioner's claim in Respondent's Special Investigative Unit (SIU), and that Respondent has failed to provide a person most knowledgeable for deposition. (Petition, ¶¶ 3, 5, 6.)

On March

2, 2026, Petitioner filed this motion. On July 2, 2026, Respondent filed opposition. As of July 14, 2026, Petitioner has not filed a reply.

Petitioner

argues that this matter arises from an uninsured/underinsured motorist claim Petitioner made with his insurer, Respondent, who transferred the claim to its SIU without disclosing why. Petitioner argues that he then served notice for Respondent's person most knowledgeable (PMK) deposition pursuant to Code Civ. Proc. § 2025.230 to discover why the claim was placed in the SIU. (Motion to compel, p. 4.) Petitioner argues that it properly noticed the deposition and is therefore entitled to depose Respondent's PMK. (Id. at p. 5.) Petitioner also requests sanctions. (Ibid.)

In

opposition, Respondent argues that Petitioner cannot depose Respondent's PMK because this is not a civil action against Respondent in which Petitioner can issue a subpoena. Respondent argues that Petitioner is not making a bad faith claim nor is this matter in arbitration. (Opposition, p. 2.) Respondent also argues that on March 31, 2026, it denied coverage because Petitioner was a passenger in a vehicle insured under a different policy, which offered higher uninsured motorist coverage than Petitioner's state farm policy, so the underlying issue has resolved. (Ibid.)

Motion to Compel Deposition

If a party to an action is served with a deposition notice and fails to appear or proceed, the noticing party may move for an order compelling the deponent's testimony and the production of any documents described in the deposition notice. (Code Civ. Proc. § 2025.450(a).)

The Discovery Act confers upon litigants the right to take depositions without prior court order or approval and, accordingly, with an exception not here applicable, does not require any showing of good cause for the taking of depositions." (Kramer v. Superior Ct. Of Los Angeles Cnty. (1965) 237 Cal.App.2d 753, 755.) A deponent may be examined "regarding any matter, not privileged, which is relevant to the subject matter involved in the pending action, whether it relates to the claim or defense of the examining party or to the claim or defense of any other party." (Id. at 756.)

"A Motion under subdivision (a) shall comply with both of the following:

(1)

The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2)

The motion shall be accompanied by a meet and confer declaration. . .” (Code Civ. Proc. § 2025.450(b).)

“If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2025.450(g).)

Analysis

The provision of the Civil Discovery Act authorizing deposition subpoenas and motions to compel depositions apply to “actions.” An “action” is defined as a “civil action and special proceeding of a civil nature.” (Code Civ. Proc. § 2016.020(a).) A civil case is “a case prosecuted by one party against another for the declaration, enforcement, or protection of a right or the redress or prevention of a wrong.” (Cal.Rules of Court, rule 1.6.) Depositions are also proper in arbitration, a special proceeding. (Code Civ. Proc. § 2016.020(a).)

Petitioner's

petition does not seek any declaration, enforcement, or protection of any right, nor does it seek to prevent or redress a wrong. Petitioner is also not currently in arbitration with respondent. Since there is no action or special proceeding, Petitioner could not issue a valid subpoena, nor can he compel a deposition.

Conclusion

Petitioner's

Motion to Compel Deposition is DENIED.